



DEPARTMENT OF EDUCATION

Colorado State Board of Education

RULES FOR THE REVIEW OF EARLY COLLEGE DESIGNATIONS

1 CCR 301-105

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

Statement of Basis and Purpose

These Early College rules are promulgated under section 22-35-111(1), C.R.S., to implement section 22-35-103(10)(b), C.R.S.

1.00 Definitions

- 1.01 "Department" means the department of education created and existing pursuant to section 24-1-115, C.R.S.
- 1.02 "Early College" is defined in section 22-35-103(10)(a), C.R.S. A school that includes grades below the ninth grade may qualify if the secondary-school grade levels of the school meet the definition of an Early College.
- 1.03 "Local education provider" means a school district, a board of cooperative services, a district charter school, or an institute charter school.
- 1.04 "Postsecondary career and technical education program" means a career and technical education program that offers postsecondary courses and is approved by the state board for community colleges and occupational education pursuant to section 23-8-103, C.R.S.
- 1.05 "Postsecondary credential" means:
 - (a) a degree or credential conferred by an institution of higher education; or
 - (b) an industry-recognized certificate, materially similar to those identified under section 22-54-138(3), C.R.S.; or
 - (c) a certificate from a postsecondary career and technical education program.
- 1.06 "State Board" means the state board of education created pursuant to section 1 of article IX of the state constitution.

2.00 Review of Early College Designations

- 2.01 Schools designated as Early Colleges under subparagraphs 22-35-103(10)(a)(VI) and (VII), C.R.S. who wish to retain that designation, and any school seeking a new Early College designation, must submit a review application. The review application must include:
 - (a) The name of the school and the school's local education provider (or, if the school is itself a local education provider, the names of the school and the school's authorizer);

- (b) A description of the school's four-year curriculum, under which students enroll in and complete secondary and postsecondary courses such that, upon successful completion of the curriculum, the student will have completed the requirements of a high school diploma and either (1) an associate's degree or other postsecondary credential or (2) at least sixty credits toward the completion of a postsecondary credential;
 - (c) A statement of the school's graduation requirements, requiring each student to complete said curriculum in order to receive a diploma;
 - (d) A description of the agreements in place with postsecondary partners that allow implementation of said curriculum (a copy of written agreements can be submitted in lieu of a description); and
 - (e) A description of the supports provided to students who appear unable to successfully complete said curriculum within four years.
- 2.02 The Department shall set a schedule for the review cycle, which must include deadlines for (1) schools to submit review applications, (2) CDE to submit recommendations to the State Board, (3) schools may submit responses to CDE's recommendations, and (4) the State Board to make determinations. The Department may revise such schedule as needed, but the schedule and any revisions must be publicly disseminated at least 60 days before the deadline for schools to submit review applications. The schedule need not be the same for initial applications as for applications to retain a designation.
- 2.03 In making Early College determinations, the State Board shall consider whether the secondary school offers only a curriculum compliant with section 22-35-103(10)(a), C.R.S. The rate at which students successfully complete the Early College curriculum within four years shall be relevant evidence for purposes of the State Board's determination for renewal applications.
- 2.04 Any secondary school determined to be an Early College must submit a review application under this section 2.00 of these rules to retain its Early College designation, no later than five years after its most recent State Board determination. The Department may recommend an early review for any Early College, and the State Board may review any Early College's designation at any time by voting to (a) request a review application under section 2.03 and (b) set a schedule therefor. A failure to submit a timely review application (either as due every five years or as requested by the State Board) shall be deemed an abandonment of the designation, and the Department will recommend to the State Board that it make a determination accordingly.
- 3.00 Effect of Early College Designations**
- 3.01 A secondary school that the State Board determines meets the curriculum requirements specified in 22-35-103(10)(a), C.R.S., qualifies for the exclusion in 22-35-110(4), C.R.S. The schools enumerated in subparagraphs 22-35-103(10)(a)(I)-(V), C.R.S., qualify for the exclusion in 22-35-110(4), C.R.S., without the need for a State Board determination.
- 3.02 A secondary school that the State Board determines does not meet the curriculum requirements specified in 22-35-103(10)(a), C.R.S., is no longer designated as an Early College. The provisions of the Concurrent Enrollment Programs Act, sections 22-35-101 et seq., C.R.S., shall apply to the school beginning with the following academic year. A school may apply or re-apply for early college designation through the State Board process.

Editor's Notes

History

New rule eff. 05/30/2019.